

1 Q. When you were traveling, was the scooter
2 motorized or not? Yes or no?

3 A. It wasn't motorized. The scooter, its
4 battery had failed. I was walking it. I was
5 kick-scooting it, but -- I was, you know,
6 kick-scooting it.

7 Anyways, long story short, I was going
8 northbound. I got hit from behind.

9 Q. And after you got hit and you came to, we
10 have covered a lot of that there.

11 How do you know you got hit from behind?

12 A. I have broken ribs in my back along my spine.
13 That is where the images and the --

14 MS. NAVARATNASINGHAM: Objection, calls for
15 speculation.

16 THE COURT: It is hearsay.

17 THE WITNESS: I could feel my back was
18 broken. Not hearsay. This is my feeling. I am
19 allowed to tell people what I felt when my back was
20 broken.

21 THE COURT: You may. But the way --

22 THE WITNESS: You don't get to tell me I
23 didn't have my back broken. That is absolutely
24 absurd.

25 THE COURT: Mr. Rosario, the way you framed
26 it, it elicits a hearsay response, which is not
27 allowed.

28 If you want to talk about how you felt, that